

2:00 PM LINE 8

26-CIV-06367

DAN STEGINK, ET AL VS. SARAH COFFEY, ET AL

DAN STEGINK
SARAH COFFEY

JASON A. BEZIS
MICHELLE MARCHETTA KENYON

WRIT OF MANDATE AND PRELIMINARY INJUNCTION MERITS HEARING

TENTATIVE RULING:

For the reasons stated below, Petitioners Dan Stegink and William Collins’s Verified Petition for Writ of Mandate is **DENIED**.

Petitioners seek an order requiring modification of the ballot question and impartial analysis for City of Pacifica Measure BB. Because the requested relief concerns official election materials, Petitioners must establish not only a statutory violation, but also that issuance of the requested writ will not substantially interfere with the printing or distribution of election materials. (Elec. Code, §§ 9295, 13314.)

The Court finds Petitioners have not met that burden. The declaration of Assistant Chief Elections Officer Jim Irizarry establishes that the County is operating under imminent ballot-production, translation, proofing, programming, and statutory mailing deadlines for the November 3, 2026 election. On this record, Petitioners have not demonstrated that the requested amendments can be implemented at this stage without substantial interference with the election process. The petition is therefore denied on that basis.

In light of the expedited nature of this election matter, the Court also reaches the merits to ensure a complete record for any appellate review. Were relief otherwise available, the Court would find that the phrase “To protect Pacifica’s long-term financial stability” is argumentative and likely to create prejudice in favor of Measure BB, and therefore does not satisfy Elections Code section 13119(c). (*McDonough v. Superior Court* (2012) 204 Cal.App.4th 1169.) The Court otherwise finds that Petitioners have not established a sufficient basis to order the remaining requested changes to the ballot question or to the City Attorney’s impartial analysis.

Accordingly, the Petition for Writ of Mandate is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties’ attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

UD LAW AND MOTION CALENDAR THURSDAY, SEPTEMBER 3, 2026

2:00 PM LINE 9

26-UDL-00477

CLAUDIO S. NICOLOSI VS. CHRISTINA NICOLOSI, ET AL

CLAUDIO S. NICOLOSI
CHRISTINA NICOLOSI

STEVEN T. NAUMCHIK
PRO PER

MOTION TO STRIKE/TAX COSTS

TENTATIVE RULING:

For the reasons stated below, Plaintiff Claudio Nicolosi's Motion to Strike or Tax Defendant Mark Williams's Memorandum of Costs is **DENIED**.

Plaintiff voluntarily dismissed Defendant Mark Williams from this action on June 11, 2026. A defendant in whose favor a dismissal is entered is a prevailing party entitled to recover allowable costs as a matter of right. (Code Civ. Proc., § 1032, subds. (a)(4), (b); *Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 425–426.) The fact that the action remains pending against another defendant does not postpone Williams's prevailing-party status or his right to claim costs. (*Ibid.*; *Fries v. Rite Aid Corp.* (2009) 173 Cal.App.4th 182, 193.)

Williams's June 26, 2026 Memorandum of Costs was timely following his June 11, 2026 dismissal. (Cal. Rules of Court, rule 3.1700(a)(1).) Williams seeks \$255 in filing and motion fees and \$625 in service-of-process expenses, both categories of which are allowable under Code of Civil Procedure section 1033.5, subdivision (a). Williams's verified memorandum, declaration, and supporting documentation sufficiently establish that the claimed expenses were incurred in defending the action. Plaintiff has not demonstrated that the claimed costs were unnecessary or unreasonable.

Accordingly, Williams is entitled to recover costs in the amount of **\$880**. His additional, unquantified request for costs incurred in opposing the present motion is **DENIED without prejudice**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM LINE 10

26-UDL-00922

BEX FMCA, LLC VS. JULIAN EMANUEL SAMBOLA MARTINEZ

BEX FMCA, LLC
JULIAN EMANUEL SAMBOLA MARTINEZ

KIYOSHI DIN
PRO PER

DEMURRER; MOTION TO STRIKE COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Julian Emanuel Sambola Martinez’s Demurrer is **OVERRULED**. Defendant’s Motion to Strike is **DENIED**.

LEGAL STANDARD

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to determine whether they state a cause of action under any legal theory as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov’ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) A complaint must allege the essential elements of a cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) A demurrer must dispose of an entire cause of action to be sustained. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

In determining whether a complaint states facts sufficient to constitute a cause of action, the Court accepts as true properly pleaded factual allegations and matters properly subject to judicial notice, but not contentions, deductions, or conclusions of fact or law. (Code Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) The complaint must be reasonably interpreted and read as a whole, with its parts considered in context. (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) The Court construes the pleading liberally (Code Civ. Proc., § 452) and accepts as true facts that may reasonably be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.)

DISCUSSION

The Complaint adequately alleges that Plaintiff owns the premises, Defendant entered into a written one-year residential tenancy through Plaintiff’s agent, Defendant failed to pay rent, and a three-day notice to pay rent or quit was served and expired without compliance. The Complaint is also properly verified by Plaintiff’s counsel.

Defendant’s contention that he is the “Owner of Record” does not establish a pleading defect. Plaintiff’s judicially noticed Grant Deed identifies BEX FMCA, LLC as the grantee of the property, and Defendant’s arguments concerning an inactive fictitious business name and prior dismissed unlawful-detainer actions do not establish that Plaintiff lacks capacity or standing to maintain this action. Defendant’s motion to strike

likewise identifies no matter appearing on the face of the Complaint that warrants relief under Code of Civil Procedure section 436.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

Posted: 3:00 P.M.

